

Vishal Chawla v. Purvanchal Vidhut Vitrana Nigam Ltd., Varanasi and Another

High Court of Judicature at Allahabad · Division Bench · 24.11.2023 · 2023:AHC:223175-DB · WRIT - C No. - 27409 of 2023 · **Writ dismissed; petitioner left to Clause 6.5.**

HEADNOTE

Writ disputing an electricity bill, for non-payment of which a recovery citation had issued, dismissed because the petitioner may take recourse to Clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Vishal Chawla filed Writ-C No. 27409 of 2023 in the Allahabad High Court against Purvanchal Vidhut Vitrana Nigam Ltd., Varanasi, disputing an electricity bill for which a recovery citation had been issued. None appeared to press the petition on 12 September 2023, and it was adjourned, then listed again on 18 October 2023. On 27 October 2023 the Court directed that the recovery certificate not be pressed. On 8 November 2023 that interim order was extended while the licensee's counsel sought further time for instructions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill and recovery citation — alternate remedy

HOLDING

Where the petitioner disputes the electricity bill for non-payment of which a recovery citation has been issued, the petitioner may take recourse to Clause 6.5 of the Electricity Supply Code, 2005, and the writ is dismissed in view of that alternative remedy. ¶ [final order](#)

PRINCIPLE TAGS

[clause-6.5-alternate-remedy-to-writ](#) The Division Bench dismissed the writ on the ground that Clause 6.5 was an available alternative remedy for the consumer who disputed the electricity bill underlying the recovery citation. ¶ [final order](#)

[clause-6.5-statutory-remedy-disputed-bill](#) The dispute before the Court was the electricity bill itself, and Clause 6.5 was treated as the remedy for that dispute. ¶ [final order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISPUTED ELECTRICITY BILL AND THE RECOVERY CITATION WERE CORRECT

The Court did not examine the bill and left the petitioner to Clause 6.5. ¶ [final order](#)